

National Oilseeds And Vegetable Oils Development Board Regulations, 1988

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National Oilseeds And Vegetable Oils Development Board Regulations, 1988

Rule NATIONAL-OILSEEDS-AND-VEGETABLE-OILS-DEVELOPMENT-BOARD-REGULATIONS-1988 of 1988

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National Oilseeds And Vegetable Oils Development Board Regulations, 1988

Published vide Notification Gazette of India, S.O. 990(E) on dated 27th October, 1988.

1798.

S.O. 990(E) 27th October, 1988. - In exercise of the powers conferred by section 19 of the National Oilseeds and Vegetable Oils Development Board Act, 1983 (

29 of 1983

), the National Oilseeds and vegetable Oils Development Board, with the previous sanction of the Central Government, hereby makes the following regulations, namely :-

Chapter-1 Preliminary

1.

Short title, commencement and application.

(1)

These regulations may be called the National Oilseeds and Vegetable Oils Development Board Regulations, 1988.

(2)

They shall come into force on the date of their publication in Official Gazette.

2.

Definitions.

- In these regulation unless there is anything repugnant in subject or context,-

(a)

`Act' means the National Oilseeds and Vegetable Oils Development Board Act, 1983 (29 of 1983

)

(b)

Committee' means any committee including ad hoc committee of the Board under section 8;

(c)

`rules' means the National Oilseeds and Vegetable Oils Development Board Rules, 1984 made under section18;

(d)

`Secretary' means the Secretary of the Board;

(e)

`section' means a section of the Act;

(f)

The words and expressions used and not defined in these regulations but defined in the Act shall have the meanings respectively assigned to them in the Act.

Chapter - II Procedure for Meetings of the Board and its Committees

3.

Meeting of the Board and its committees.

(1)

The Board shall hold at least three meetings in each financial year on such dates and at such places as the Chairman may think fit and the interval between any two ordinary meetings shall not in any case be longer than eight months :
Provided that the Board may, with the permission of the Central Government, hold less than three meetings in any particular financial year.

(2)

The Managing Committee shall hold at least one meeting in every quarter on such dates and at such places as the Vice-Chairman may think fit and the interval between any two ordinary meetings shall not in any case be longer than four months :

Provided that the Managing Committee may, with the permission of the Board, hold no meeting in any particular quarter.

4.

Power to call meetings.

(1)

The Chairman and the Chairman of the Committees may at any time call a meeting of the Board and of any of the committees, respectively and shall do so also if a requisition for a meeting is presented to them in writing by at least twelve members in the case of a meeting of the Board and at least four members in the case of a meeting of a committee.

(2)

The Chairman or the chairman of the Committee may require any officer or officers of the Board to attend any meeting of the Board or of a Committee respectively but such officers shall not have the power to vote.

(3)

At least fourteen clear days before a meeting of the Board and at least ten clear days before a meeting of any of the committees, notice of the date, time and place of the intended meeting signed by the Secretary shall be sent to the Central Government and left at or posted to the address of every member of the Board or, as the case may be, of the

committee:

Provided that in case of urgency, a special meeting of the Board or of any of the committees may be summoned at any time by the Chairman, or as the case may be, by the Chairman of the Committee who shall inform in advance the Central Government and the member of the subject matter for discussions and the reasons for which he considers the summoning of such urgent meeting. No ordinary business shall be transacted at such special meetings.

(4)

Notwithstanding anything contained in these regulations the Central Government may also, at any time call a meeting of the Board.

5.

Agenda.

- The Chairman or chairman of the Committee as the case may be shall cause to be prepared and circulated to the Central Government and among the members of the Board or any of the committees at least ten days before any ordinary meeting of the Board or of such committee a list of business to be transacted at that meeting.

6.

Quorum.

(1)

No business shall be transacted at a meeting of the Board unless there are present at least twelve members and no business shall be transacted at a meeting of a committee unless there are present at least four members.

(2)

If at any time the number of members present in a meeting of any of the committees is less than the required quorum, the person presiding shall adjourn the meeting to a date not later than seven days from the date of the meeting informing the members of the committee of the date, time and place of the adjourned meeting and if the number of members present at such adjourned meeting is less than the required quorum, the members so present shall constitute the quorum.

7.

Absence from meetings of a Committee.

- Any member other than an ex-officio member of a committee absenting himself from three consecutive meetings without the leave of the Chairman of the Committee shall cease to be a member of that committee.

8.

Filling up of casual vacancies.

(1)

Any casual vacancy in the membership of a Committee shall be filled up by the remaining members of the Committee from amongst the members of the Board.

(2)

A persons appointed in a casual vacancy shall hold office so long as the member whose place he fills would have been entitled to hold office if the vacancy had not occurred.

9.

Presiding over meetings.

(1)

At every meeting of the Board at which he is present the Chairman shall preside and in his absence the Vice-Chairman shall preside. If both the Chairman and the Vice-Chairman are absent the members present at the meeting shall elect one from among themselves to preside over the meeting.

(2)

At every meeting of any of the Committees the Chairman of the Committee concerned shall preside. If the Chairman of the Committee is absent the members present at the meeting shall elect one from among themselves to preside over the meeting.

10.

Business by circulation.

(1)

Any business which is to be transacted by the Board or a committee may if the Chairman of the Board or of the committee so directs be referred to members (other than members who are absent from India) by circulation of papers.

(2)

Any proposal or resolution circulated under sub-regulation (1) and approved by the majority of members who have recorded their views in writing shall be as effectual and binding as if such proposal or resolution were decided by the majority of the members at a meeting :

Provided that at least twelve members of the Board or four members of the committee as the case may be, have recorded their views on the proposal or resolution:

Provided further that when a proposal or resolution is referred to the members by circulation, any eight members of the Board or four members of any of the committees, as the case may be, may require that the proposal or resolution be referred to members at a meeting and thereupon such reference shall be made to members at a meeting of the Board or of the committee, as the case may be.

(3)

When any business is referred to members of the Board or of a committee, as the case may be, by circulation, a period of not less than fifteen clear days shall be allowed for receipt of replies from members. Such period shall be reckoned from the date on which the notice of business is issued.

(4)

If a proposal or resolution is circulated, the result of the circulation shall be communicated to all the members of the Board or of the committee concerned.

(5)

All decisions on questions arrived at by circulation of papers shall be placed at the next meeting of the Board or of the committee, as the case may be, for record.

11.

Record of business.

(1)

A record shall be maintained by the Secretary of all items of business transacted by the Board or by the committees and copies of such record shall be forwarded to the Central Government.

(2)

The record of business transacted at every meeting of the Board and of any of the committees shall be signed by the Chairman or the Vice-Chairman or the member presiding at such meetings.

(3)

When a business is transacted by circulation of papers, a record of business so transacted shall be signed by the Chairman.

12.

Voting.

(1)

Every question brought before any meeting of the Board or its committees shall be decided by a majority of members present and voting at the meeting before which the matter is brought.

(2)

In the case of an equality of votes, the Chairman or the Vice-Chairman or the member presiding over the meeting of the Board or of the committee, as the case may be, shall have a second or casting vote.

Chapter - III Service Conditions of Employees

13.

Pay, leave and allowances, etc.

- The pay, leave, allowances, pension and retirement benefits, other conditions of service and other facilities and concessions such as advances of pay, advances for purchase of conveyances, construction of houses and the like in respect of all employees of the Board shall be regulated in accordance with such rules and orders as are for the time being applicable to officers and employees of the Central Government of the corresponding grades or status stationed at those places till separate regulations are made by the Board.

14.

Method of Recruitment, etc.

- The Board may, till regulations providing the method of recruitment, age limit and other qualifications etc. are framed, in consultation with the Central Government, follow the method of recruitment, age limit and other qualifications etc. for

the posts to which the appointments are to be made urgently on the basis of rules for analogous posts under the Central Government and with their approval.

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